

A claim for a tax refund must be filed within four years after making the payment sought to be refunded. Rev. & Tax Code § 5097(a)(2). If such a claim for refund is rejected, an action must be commenced within six months from the date of rejection. Rev. & Tax Code § 5141(a). At bar, Plaintiffs allege making payments from 1987 and continuing after 1991, and that as of 2001 a certain amount of payments had been made. Complaint, ¶¶ 9-10. Plaintiffs made a demand for a refund on March 19, 2024 which was denied on April 18, 2024 and May 17, 2024. Complaint, ¶¶ 21-24. Plaintiffs did not file any civil suit until it commenced its federal action on June 10, 2025 and the present action on December 22, 2025, far after the expiration of the six-month limit. As such, the demurrer can be sustained.

Government Claims Act

Defendant argues all causes of action are barred by Plaintiffs' failure to comply with the Government Claims Act ("GCA"). The Court agrees.

Pursuant to the GCA, a complaint for money or damages against a public entity must be preceded by a proper administrative claim. Gov. Code § 905. Such a claim must be presented no later than one year after the accrual of the cause of action. Gov. Code § 911.2(a). A claimant may make an application for leave to present a late claim within one year after the accrual of the cause of action. Gov. Code § 911.4(b). If the application to file a late claim is denied, a petition may be made to the court to file a late claim, which must be filed within six months after the application to the board is denied. Gov. Code §§ 911.6; 946.6(a).

In the present Complaint, Plaintiffs assert the Government Claims Act is not applicable because it relates to entitlement to refund of a special assessment. Complaint, ¶ 30. However, the prior federal complaints allege Plaintiffs made a "demand and concomitant Notice of Claim under CA Government Code Sections 910 et seq." and "Leave to File Late Claim", both of which were denied on December 19, 2024. RJN, Ex. B, ¶ 22. As discussed above, Plaintiffs cannot acknowledge in one case their claims are subject to the GCA but attempt to recategorize the basis for its claims in another to avoid the effects of a demurrer by contradicting the prior claim.

At bar, Plaintiffs failed to petition the court to file a late claim as required. Thus, the demurrer is sustained. Because there the defect cannot be cured by amendment, leave to amend is denied.

2. CU0002600 Lost Horizon Ranch, LLC vs. Stephen Brennan

The petition for release of mechanic's lien is denied without prejudice.

Introduction

The case concerns the property located at 14556 Powerline Road, Grass Valley, CA 95946 ("Property"). Petitioners Lost Horizon Ranch, LLC and Ryan Zuccaro are the owners and manager of the Property. On July 18, 2025, Respondent Stephen Brennan recorded a mechanic's lien against the property in the amount of \$3,900.00 for labor, services, equipment, or materials furnished by Respondent for removal of old deck and new deck build.

Legal Standard

After a mechanic's lien has been recorded, "[t]he owner of property or the owner of any interest in property subject to a claim of lien may petition the court for an order to release the property from the claim of lien if the claimant has not commenced an action to enforce the lien within the time provided in Section 8460." Civ. Code § 8480(a). A claimant must commence an action to enforce a lien within 90 days of recording the lien. Civ. Code, § 8460(a). Civil Code § 8460 further provides that "[i]f the claimant does not commence an action to enforce the lien within that time, the claim of lien expires and is unenforceable." Civ. Code, § 8460(a). Civil Code § 8460 also provides that the 90-day time limit to commence an action to enforce a lien does not apply if there was an agreement to extend credit and a notice of that fact was recorded within 90 days after recordation of the claim of lien or more than 90 days after recordation of the claim of lien but before a purchaser or encumbrancer for value and in good faith acquires rights in the property. Civ. Code, § 8460(b).

Civil Code § 8484 requires that the petition for release order be verified by the petitioner and allege the following:

- (a) The date of recordation of the claim of lien. A certified copy of the claim of lien shall be attached to the petition.
- (b) The county in which the claim of lien is recorded.
- (c) The book and page or series number of the place in the official records where the claim of lien is recorded.
- (d) The legal description of the property subject to the claim of lien.
- (e) Whether an extension of credit has been granted under Section 8460, if so to what date, and that the time for commencement of an action to enforce the lien has expired.
- (f) That the owner has given the claimant notice under Section 8482 demanding that the claimant execute and record a release of the lien and that the claimant is unable or unwilling to do so or cannot with reasonable diligence be found.
- (g) Whether an action to enforce the lien is pending.
- (h) Whether the owner of the property or interest in the property has filed for relief in bankruptcy or there is another restraint that prevents the claimant from commencing an action to enforce the lien.

A property owner may not petition for a release order until he or she gives the claimant notice demanding that the claimant execute and record a release of lien claim at least ten days before filing the petition. Civ. Code § 8482. The manner of giving notice must comply with the requirements of Civil Code sections 8100, et. seq. *Id.*

"The petitioner shall serve a copy of the petition and a notice of hearing on the claimant at least 15 days before the hearing." Civ. Code, § 8486(b). "Service shall be made in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requested, addressed to the claimant as provided in Section 8108." *Id.*

Civil Code section 8108 provides that notice can be given to Respondent at the address shown on Respondent's claim of lien. Civ. Code § 8108(d). The petitioner bears the burden of proving compliance with the service and notice requirements. Civ. Code § 8488(a).

Analysis

Statutory Requirements

At bar, the petition complies with the statutory requirements. The Petition is verified, alleges the date of recordation of the Claim of Mechanic's Lien, the county in which it was recorded (Nevada County), and attaches and incorporates by reference a certified copy of the Claim of Mechanic's Lien. Pet., ¶ 10(a)-(b); Pet. p. 5 (verification); Exh. B. The Petition states the lien was recorded in the official records of the County Recorder as Document No. 20250011083. Pet., ¶ 10(c). The Petition alleges the legal description of the Subject Property. Pet., ¶ 1, Ex. A.

The Petition alleges that no extension of credit has been granted, that no action to foreclose the Claim of Mechanic's Lien was filed, that the 90-day time period to enforce the Claim of Mechanic's Lien has expired. Pet., ¶¶ 9, 10(e), (f). The Petition also alleges Petitioner has not filed for bankruptcy and that no other restraint exists preventing Respondent from filing an action to enforce the lien. Pet., ¶ 10(h). The Petition alleges that on November 18, 2025, which is at least ten days prior to the filing of the Petition, Petitioner sent Respondent, by certified mail a written demand to remove the Claim of Mechanic's Lien. Pet., ¶ 10, Exh. C. Service of the written demand by "registered or certified mail, express mail, or overnight delivery by an express service carrier" is proper. Civ. Code §§ 8100, 8106(b), 8110.

In sum, Petitioner has met the substantive requirements for relief.

Service Requirements

"The petitioner shall serve a copy of the petition and a notice of hearing on the claimant at least 15 days before the hearing." Civ. Code, § 8486(b). "Service shall be made in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requested, addressed to the claimant as provided in Section 8108." *Id.* If service is made by mail, notice of hearing must be given at least 15 days before the hearing, plus 5 calendar days for service by mail. Code of Civ. Proc. § 1013(a). The petitioner bears the burden of proving compliance with the service and notice requirements. Civ. Code § 8488(a).

At bar, Petitioner's proof of service filed January 28, 2026 indicates service was made by certified US mail with postage prepaid and return receipt on January 21, 2026. There is no indication service was made "in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requested." Civ. Code § 8486(b); Code Civ. Proc. §§ 415.10, 1010.6(a)(2). However, there is no proof service as to the Amended Notice of Hearing filed on January 28, 2026. Additionally, a Declaration of Non-Service was filed on April 2, 2026.

Thus, the Court finds Petitioner fails to sustain his burden of proof with respect to service and notice of hearing.

As such, the Court denies the petition without prejudice to renewal given the defect in service and notice discussed.

3. CU21-085893 TOM AMESBURY et al vs. BARBARA HEGER et al

Defendant Barbara Heger, as Trustee of the Barbara Heger Living Trust, to Plaintiffs' First Amended Complaint is overruled.

Request for Judicial Notice

This request was raised on Defendant Heger's ("Heger") reply and as such is untimely, and there is not good cause shown why this is an exceptional case meriting its consideration. *See, e.g., Plenger v. Alza Corp.* (1992) 11 Cal.App.4th 349, 362, n. 8 ("the inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case"); *Save the Sunset Strip Coalition v. City of West Hollywood* (2001) 87 Cal.App.4th 1172, 1182, n. 3 ("absent justification for failing to present an argument earlier, we will not consider an issue raised for the first time in a reply brief).

Oversized Brief

Subject to exceptions which do not apply here, under California Rules of Court, rule 3.1113(d), "no opening ... memorandum may exceed 15 pages." Cal. Rules of Court, rule 3.1113(d). The memorandum submitted in support of the present motion is 24 pages. The Court's records reflect that plaintiff did not file an appropriate application with the Court requesting permission to file a longer memorandum. *See* Cal. Rules of Court, rule 3.1113(e). That stated, the Court, in the exercise of its discretion, will consider the moving papers in their entirety. Defendant is admonished to comply with the California Code of Civil Procedure and the California Rules of Court.

Legal Standard

On demurrer, a court's function is limited to testing the legal sufficiency of the complaint. *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-114. In determining a demurrer, the court assumes the truth of the facts alleged in the complaint and the reasonable inferences that may be drawn from those facts. *Miklosy v. Regents of the Univ. of Cal.* (2008) 44 Cal.4th 876, 883. A court must determine if the factual allegations of the complaint are adequate to state a cause of action under any legal theory. *Barquis v. Merchants Collection Assn.* (1972) 7 Cal.3d 94, 103.

Contentions, deductions and conclusions of law, however, are not presumed as true. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967. A plaintiff is not required to plead evidentiary facts supporting the allegation of ultimate facts; the pleading is adequate if it apprises the defendant of the factual basis for the plaintiff's claim. *Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6. A demurrer is not the appropriate procedure for determining the truth of disputed facts. *Fremont Indemnity Co.*, 148 Cal.App.4th at 113-114.